Who speaks? Who transfers?

A retained rehearsal of Gaius's formal conveyances.

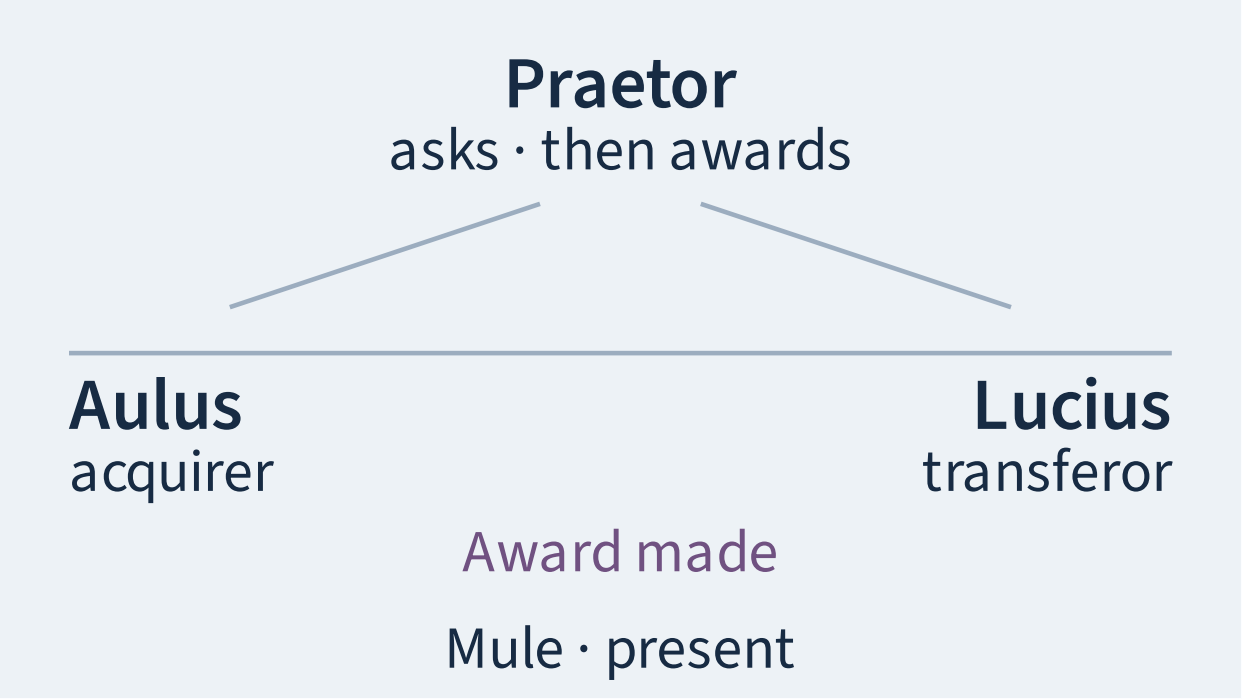
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The arrangement

Facts at the start of this rehearsal

Procedure	Surrender before the magistrate
Thing	Trained mule
Present / grasped	Yes



Civil title: Aulus

Civil title passes through the completed form, on the stipulated facts. Delivery of possession is a separate question.

Possession is not assigned by the ceremony diagram.

Every attempt, in order

1. **Aulus · acquirer: Make the ownership claim — entered in the sequence**

   The acquirer claims the thing. The praetor has not yet questioned the transferor or awarded it. Read the passage.

2. **Praetor · magistrate: Ask Lucius about a counterclaim — entered in the sequence**

   The praetor asks whether Lucius makes a counterclaim. A reply or silence now supplies the next condition. Read the passage.

3. **Lucius · owner: Say that you make no counterclaim — entered in the sequence**

   Negante: Lucius denies making a counterclaim. That is not a denial of Aulus's ownership claim. The praetor must still award the thing. Read the passage.

4. **Praetor · magistrate: Award the thing to Aulus — entered in the sequence**

   Tunc ... addicit: then the praetor awards the thing to the claimant. This completes the described unopposed conveyance. Read the passage.

Your explanation

Negante denies making a counterclaim. Silence still needs the award. Literal <script>text</script> & notes.

Retained as written, not graded. The arrangement and attempts were captured when you requested this document; the result was recomputed from those facts.

Scope

This is a rehearsal of acts described by Gaius, not a general validity test or a reconstruction of a particular historical transaction. Lucius is a capable and authorized owner; Aulus can acquire; the thing is ordinary private property and the sale and price arrangements are valid. All witnesses and the balance holder satisfy the citizenship and maturity conditions. The trained mule avoids the disagreement about young animals in 2.15. Only Italian land is offered in the bronze procedure.

The model advances through the source's stated sequence. Rejected attempts do not advance it. It does not decide every possible defect, cure, ceremonial variation, possession dispute or remedy. A counterclaim before the praetor is outside this unopposed conveyance and is not treated as a victory for either party.

Completion concerns civil title through the formal conveyance. It does not assert that the ritual grasp equals delivery of legal possession, or that the symbolic bronze equals the price. Use the ownership cases to compare delivery with and without the stipulated valid form.

The source describes institutions that also subjected people to ownership and family power. Its quoted formulas and complete pages retain that evidence. The interactive objects are a mule and land. Names, participant positions, stage numbers and English action labels are modern teaching choices.

Gaius 1.119 · opening

Five witnesses, and another person

[...] adhibitis non minus quam quinque testibus civibus Romanis puberibus et praeterea alio eiusdem condicionis, qui libram aeneam teneat, qui appellatur libripens [...]

Close English translation

[…] with not fewer than five witnesses, Roman citizens above puberty, and in addition another person of the same condition, who holds a bronze balance and is called the balance holder […]

Excerpt on printed page 74. The sentence continues on 75. Five is a minimum; the balance holder is additional. The schematic positions are ours, not a reconstruction of where participants stood.

non minus quam
not fewer than. Six witnesses also meet the stated minimum.

praeterea alio
in addition, another. The libripens is not one of the five witness roles.

libripens
balance holder. Libra (balance) and pendere (weigh). This person holds the balance; the acquirer strikes it.

Printed pages: 74, 75.

Gaius 1.119 · acquirer’s acts

He speaks. He strikes. He gives.

[…] is qui mancipio accipit, aes tenens ita dicit: HVNC EGO HOMINEM EX IVRE QVIRITIVM MEVM ESSE AIO ISQVE MIHI EMPTVS ESTO HOC AERE AENEAQVE LIBRA; deinde aere percutit libram idque aes dat ei a quo mancipio accipit quasi pretii loco.

Close English translation

[…] the person acquiring by mancipation, holding bronze, speaks thus: ‘I declare that this man is mine by the law of the Quirites, and let him be purchased by me with this bronze and bronze balance’; then he strikes the balance with the bronze and gives that bronze to the person from whom he acquires, as if in place of the price.

Excerpt spanning pages 74–75, with a new close translation. Gaius's quoted formula concerns a human being under Roman domination. The rehearsal uses a mule or Italian land, both named in 1.120; its English action labels are teaching adaptations, not a newly attested formula. The source's quasi matters: the bronze act is not a model of the negotiated sale price.

is qui mancipio accipit
the person acquiring. Aulus speaks; Lucius is the transferor.

deinde
then. Marks the action after the spoken formula.

idque aes
and that bronze. The bronze used to strike the balance is given to the transferor.

quasi pretii loco
as if in place of the price. The ceremony and the underlying economic transaction are distinguishable.

Printed pages: 74, 75.

Gaius 1.120–121 · excerpts

The mule must be there. The field need not be.

[...] animalia quoque quae mancipi sunt, quo in numero habentur boves, equi, muli, asini [...] praedia [...] qualia sunt Italica, eodem modo solent mancipari. [...] item animalia, quae mancipi sunt, nisi in praesentia sint, mancipari non possunt; adeo quidem, ut eum ⟨qui⟩ mancipio accipit, adprehendere id ipsum quod ei mancipio datur necesse sit; [...] praedia vero absentia solent mancipari.

Close English translation

[…] also animals that are res mancipi, including oxen, horses, mules and asses […] estates […] such as Italian ones, are customarily mancipated in the same way. […] likewise animals that are res mancipi cannot be mancipated unless present; indeed the acquirer must grasp the very thing being mancipated to him; […] estates, however, are customarily mancipated while absent.

Joined excerpts from 1.120 and 1.121; omissions are marked. Qui is supplied in the 1904 edition. Presence in the controls includes the acquirer's grasp of the animal. The absent-field allowance is used only for mancipation; it is not silently transferred to the magistrate scene.

nisi in praesentia sint
unless they are present. A requirement for the animals in this account.

adprehendere
to grasp. The animal itself, not a sketch of it.

praedia vero absentia
estates, however, while absent. Vero marks the contrast; the land need not be brought into the scene.

Printed pages: 75.

Gaius 2.24

Silence is a condition. The award is an act.

In iure cessio autem hoc modo fit: apud magistratum populi Romani, veluti praetorem, is cui res in iure ceditur rem tenens ita dicit: HVNC EGO HOMINEM EX IVRE QVIRITIVM MEVM ESSE AIO; deinde postquam hic vindicaverit, praetor interrogat eum qui cedit, an contra vindicet; quo negante aut tacente tunc ei qui vindicaverit eam rem addicit; idque legis actio vocatur. hoc fieri potest etiam in provinciis apud praesides earum.

Close English translation

Surrender before a magistrate is carried out in this way: before a magistrate of the Roman people, such as a praetor, the person receiving the surrender holds the thing and says, ‘I declare that this man is mine by the law of the Quirites.’ Then, after he has made the claim, the praetor asks the transferor whether he makes a counterclaim; when he denies this or is silent, the praetor then awards the thing to the claimant. This is called a legis actio. It can also take place in the provinces before their governors.

Complete 2.24. The formula again concerns a person; the interactive mule is an adapted example. Negante answers whether the transferor counterclaims. The sentence does not decide a contested suit; selecting a counterclaim therefore ends this model without assigning a winner. A provincial forum does not erase Gaius's separate restrictions on provincial land.

is cui
the person to whom. Identifies the receiver, who makes the ownership claim.

an contra vindicet
whether he makes a counterclaim. This is what the magistrate asks the transferor.

negante aut tacente
when he denies or is silent. Two alternatives that permit the next act; denial here means no counterclaim.

tunc ... addicit
then ... awards. The praetor performs the completing act. Silence alone is not the award.

Printed pages: 134.

Gaius 2.25

Why use friends rather than the magistrate?

Plerumque tamen et fere semper mancipationibus utimur. quod enim ipsi per nos praesentibus amicis agere possumus, hoc non est necesse cum maiore difficultate apud praetorem aut apud praesidem provinciae agere.

Close English translation

Yet generally, and almost always, we use mancipations. What we can do ourselves with friends present need not be done with greater difficulty before the praetor or provincial governor.

Complete 2.25, finishing on page 135. Section 2.22 (partly supplied in this edition) relates the effects of the two forms. Here Gaius explains a practical choice, not a statistical estimate of frequency. The workshop assumes a capable owner, authorized conveyance, suitable property and valid price arrangements; it does not certify arbitrary Roman transactions.

praesentibus amicis
with friends present. The private arrangement can avoid attendance before the magistrate.

maiore difficultate
with greater difficulty. Gaius gives a practical reason for his stated preference.

Printed pages: 134, 135.

Edition

Gaius, Institutes. Latin with Edward Poste's translation and commentary, fourth edition revised by E. A. Whittuck, Oxford: Clarendon Press, 1904. These are complete pages from a modern printed edition, not an ancient manuscript facsimile. English translations in the readings are new for this lesson; the scans preserve Poste's English. Latin joins line breaks and prints consonantal u as v. […] marks our omissions; ⟨…⟩ marks editorial supply.

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Complete printed page 74 · Poste–Whittuck, 1904

could not embrace any sum beyond the original subject of the Mutuum; 3 §§ 90, 91, comm.

DE MANCIPIO.

§ 116. Superest ut exponamus quae personae in mancipio sint.

§ 116. It remains to examine what persons are held in mancipation.

§ 117. Omnes igitur liberorum personae siue masculini siue femi*ni*ni sexus quae in potestate parentis sunt mancipari ab *hoc eodem* modo possunt, quo etiam serui mancipari possunt.

§ 117. All children, male or female, in the power of their father are liable to be mancipated by their father just as his slaves may be mancipated.

§ 118. Idem iuris est in ear*u*m personis quae in manu sunt; | ——— coemptionatoribus eodem modo possunt |———apud coemptionatorem fi|liae loco sit ———nupta sit,———nihilo minus etia*m* quae ei nupta non *si*t nec ob id filiae loco sit, ab eo mancipari possit.

§ 118. A woman in the hand is subject to the same mode of alienation, and may be mancipated by the person who has acquired her by coemption just as a daughter may be mancipated by her father: and although the acquirer of her by coemption otherwise than for the purpose of marriage has not the power of a father over her, nevertheless, though he is not her husband, and therefore has not the status of a father, he can dispose of her by mancipation.

§ 118 *a*. Plerumque ⟨*uero tum*⟩ solum et a parentibus et a coemptionatoribus mancipantur, cum uelint parentes coemptionatoresque ⟨*ex*⟩ suo iure eas personas dimittere, sicut inferius euidentius app*a*rebit.

§ 118 *a*. Almost the sole occasion of mancipation by a parent or by the acquirer of a woman by coemption is when the parent or acquirer by coemption designs to liberate the person mancipated from his lawful control, as will presently be more fully explained.

§ 119. Est autem mancipatio, ut supra quoque diximus, *i*maginaria quaedam uenditio; quo*d* et ipsum ius proprium ciuium Romanorum est, eaque res ita agitur: adhibitis non minus qu*am* quinque testibus ciuibus Romanis puberibus et praeterea alio eiusdem condicionis, qui libram aeneam teneat, qui appellatur libripens, is qui mancipio accipit, *aes*

§ 119. Mancipation, as before stated, is an imaginary sale, belonging to that part of the law which is peculiar to Roman citizens, and consists in the following process: in the presence of not fewer than five witnesses, citizens of Rome above the age of puberty, and another person of the same condition, who holds a bronze balance in his hands and is called the balance holder, the alienee holding a bronze ingot in his hand, pronounces the

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tenens ita dicit: HVNC EGO HOMINEM EX IVRE QVIRITIVM MEVM ESSE AIO ISQVE MIHI EMPTVS ESTO HOC AERE AENEAQVE LIBRA; deinde aere percutit libram idque aes dat ei a quo mancipio accipit quasi pretii loco.

§ 120. Eo modo et seruiles et liberae personae mancipantur; animalia quoque quae mancipi sunt, quo in numero habentur boues, equi, mul*i*, asini; item praedia tam urbana qu*am* rustica quae et ipsa mancipi sunt, quali*a* sunt Italica, eodem modo solent mancipari.

§ 121. In eo solo praed*io*rum mancipatio a ceterorum mancipatione differt, quod personae seruiles et liberae, item animalia quae mancipi sunt, nisi in praesentia sint, mancipari non possunt; adeo quidem, ut eum ⟨*qui*⟩ mancipio acc*i*pit, adprehendere id ipsum quod e*i* mancipio dat*ur* necesse sit; unde etiam mancipatio dicit*ur*, quia manu res capitur; praedia uero absentia solent mancipari.

§ 122. Ideo autem aes et libra adhibetur, quia olim aereis tantu*m* nummis utebantur, et erant asses, dupundii, semisses, quadrantes, nec ullus aureus uel argenteus nummus in usu erat, sicut ex lege XII tabularum intellegere possumus; eorumque nummorum uis et potestas non | in numero erat sed in pondere———as|ses librales erant, et dupundii——|; unde etiam dupundius dictus *est quasi* duo pondo, quod nomen adh*uc* in usu retinet*ur*. semis*ses quo*que et quadrant*es* pro

following words: THIS MAN I CLAIM AS BELONGING TO ME BY RIGHT QUIRITARY AND BE HE (or, HE IS) PURCHASED TO ME BY THIS INGOT AND THIS SCALE OF BRONZE. He then strikes the scale with the ingot, which he delivers to the mancipator as by way of purchase money.

§ 120. By this formality both slaves and free persons may be mancipated, and also such animals as are mancipable, namely, oxen, horses, mules, and asses: immovables also, urban and rustic, if mancipable, such as Italic lands and houses, are aliened by the same process.

§ 121. The only point wherein the mancipation of land and buildings differs from the mancipation of other things is this, that mancipable persons, whether slaves or free, and animals that are mancipable, must be present to be mancipated: it being necessary that the alienee should grasp the object to be mancipated with his hand, and from this manual prehension the name of mancipation is derived; whereas land and buildings may be mancipated at a distance from them.

§ 122. The reason of using a bronze ingot and a weighing scale is the fact that bronze was the only metal used in the ancient currency, which consisted of pieces called the as, the double as, the half as, the quarter as, and that gold and silver were not used as media of exchange, as appears by the law of the Twelve Tables: and the value of the pieces was not measured by number but by weight. Thus the as was a pound of bronze, the double as two pounds, whence its name (dupondius), which still survives; while the half as and quarter as

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§ 20. Itaque si tibi uestem uel aurum uel argentum tradidero siue ex uenditionis causa siue ex donationis siue quauis alia ex causa, statim tua fit ea res, si modo ego eius dominus sim.

§ 20. Thus when possession of clothes or gold or silver is delivered on account of a sale or gift or any other cause, the property passes at once, if the person who conveys is owner of them.

§ 21. *In* eadem causa sunt prouincialia praedia, quorum alia stipendiaria alia tributaria uocamus. stipendiaria sunt ea, quae in his prouinciis sunt, quae propriae populi Romani esse intelleguntur; tributaria sunt ea, quae in his prouinciis sunt, quae propriae Caesaris esse creduntur. Inst. 2, 1, 40.

§ 21. Similarly transferable are estates in provincial lands, whether stipendiary or tributary; stipendiary being lands in provinces subject to the dominion of the people of Rome; tributary, lands in the provinces subject to the dominion of the Emperor.

§ 22. Mancipi uero res sunt, quae per mancipationem ad alium transferuntur; unde etiam mancipi res sunt dictae. quod autem ualet ⟨*mancipatio, idem ualet et in iure cessio.*

§ 22. Mancipable things, on the contrary, are such as are conveyed by mancipation, whence their name; but surrender before a magistrate has exactly the same effect in this respect as mancipation.

§ 23. *Et*⟩ mancipatio quidem quemadmodum fiat, superiore commentario tradidimus.

§ 23. The process of mancipation was described in the preceding book (1 § 119).

§ 24. In iure cessio autem hoc modo fit: apud magistratum populi Romani, uel*uti* praetore*m*, is cui res in iure ceditur rem tenens ita dicit HVNC EGO HOMINEM EX IVRE QVIRITIVM MEVM ESSE AIO; deinde postquam hic uindicauerit, *praetor inter*rogat eum qui cedit, an contra uindicet; quo negan*te* aut tacente tunc ei qui uindicauerit, eam rem addicit; idque legis actio uocatur. hoc fieri potest etiam in prouinciis apud praesides earum.

§ 24. Conveyance by surrender before a magistrate (in jure cessio) is in the following form: in the presence of some magistrate of the Roman people, such as a praetor, the surrenderee grasping the object says: I SAY THIS SLAVE IS MY PROPERTY BY TITLE QUIRITARY. Then the praetor interrogates the surrenderor whether he makes a counter-vindication, and upon his disclaimer or silence awards the thing to the vindicant. This proceeding is called a statute-process; it can even take place in a province before the president.

§ 25. Plerumque tamen et fere semper mancipationibus utimur. quod enim ipsi per nos praesentibus amicis agere possumus, hoc non est necesse cum maiore difficultate apud

§ 25. Generally, however, and almost always the method of mancipation is preferred; for why should a result that can be accomplished in private with the assistance of our friends be prosecuted

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praetorem aut apud praesidem prouinciae agere.

§ 26. Quodsi neque mancipata neque in iure cessa sit res mancipi
(6 *uersus in C legi nequeunt*)
———|*plena possessio concessa———|ex formula qua hi qu ——|———|———| fructus na———|.

§ 27. Item adhuc i———|
(4 *uersus in C legi nequeunt*)
———|non fuissent——|
(7 *uersus in C legi nequeunt*)
——— s ———|———| est quo nomine——|———ere uel——| praedium——|dem ulla libera ciuitas——*admo*|nendi sumus ——| esse, prouincialis soli nexum non e——| significationem solum *Ita*lic*u*m mancipi *est*, pro|uinciale nec mancipi est. aliter enim ueteri lingua a|———mancipa—|.

with greater trouble before the praetor or president of the province?

§ 26. If neither mancipation nor surrender before the magistrate is employed in the conveyance of a mancipable thing . . . .

§§ 14 *a*–23. Mancipable things—things taken by the hand and so alienable—were at first, probably, the more important accessories of a farm, that is, slaves and beasts of burden—oxen, horses, mules and asses (1 § 120), land itself in Italy and rural servitudes attaching to such land being subsequently made mancipable.

These, the objects of principal value to an agricultural community, became alienable by means of the formal proceeding by bronze and balance, called mancipation, which Gaius says (1, 119) is an imaginary sale.

In its origin, however, mancipation appears to have been not an imaginary, but a genuine sale for valuable consideration. The introduction of coined money by making the weighing of the bronze in the scales a formality first gave the proceeding an appearance of unreality, but in order to maintain its original character, the Twelve Tables, which were passed at the time when this important monetary change took place, expressly declared that no property should pass by mancipation, unless the price was actually paid to the mancipating party or security given him for it (cf. Inst. 2, 1, 41 Venditae vero et traditae non aliter emptori adquiruntur, quam si is venditori pretium solverit vel alio modo ei satisfecerit, veluti expromissore aut pignore dato: quod cavetur etiam lege duodecim tabularum)—where traditae

Editable rehearsal in plain text

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translation and commentary by Edward Poste (1823-1902). Fourth edition,
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by A. H. J. Greenidge (1865-1906). Oxford: Clarendon Press, 1904.

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https://droitromain.univ-grenoble-alpes.fr/Anglica/gai2_Poste.htm
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https://www.thelatinlibrary.com/gaius1.html
https://www.thelatinlibrary.com/gaius2.html

Every retained source/font/license file is identified by byte length and
SHA-256 in manifest.json. Browser display and illustrated exports check
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```

fonts/literata-OFL.txt

```
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fonts/sourcesans3-OFL.txt

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